

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 16, 2026, AT 8:30 A.M.

These are the tentative rulings for the **THURSDAY, JULY 16, 2026, at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., WEDNESDAY, JULY 15, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR CIVIL LAW AND MOTION MATTERS. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **THE HONORABLE MICHAEL W. JONES**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 3** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0092021 CAMPUS OAKS APARTEMTNS 1 v. LADUE, RANDALL

Plaintiff's Motion to Vacate Default and Default Judgment and to Dismiss Case

On June 27, 2025, the court entered default against defendant and thereafter entered default judgment against defendant on November 13, 2025.

Plaintiff now moves to vacate the default judgment on the grounds the default and default judgment are improper because defendant filed for Chapter 7 bankruptcy protection the same day they sought default and default judgment.

Plaintiff's unopposed motion is granted and the default and default judgment entered against defendant are vacated. (Code Civ. Proc., § 473, subd. (b).) Plaintiff's additional request to dismiss the action without prejudice is granted.

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